DEARTMENT OF HEALTH & HUMAN SERVICES

NOTICE OF FINAL INTERVIEW AND RIGHT TO FILE FORMAL

Secure Data Transfer

Date: October 25, 2021

To: Kevin Turnage

From: Michelle Homer, EEO Counselor

Subject: Notice of Final Interview and Notice of Right to File a Formal Discrimination Complaint
Agency File No.: HHS-IHS-0466-2021

You contacted the EEO Office on September 3, 2021 and indicated your desire to address an issue related to: Disparate treatment on the basis of age (Over 40), gender (Male), disability (Physical), Equal Pay Act and Retaliation when you were told by your immediate supervisor that you would have to apply and compete for a detail because you do not qualify as Indian Preference Candidate, you were pulled out of a detail opportunity within the first 30 days of your detail and you were subjected to retaliation when on or about October 21, 2021 your telework status changed once your management found out you filed an EEO complaint. The informal stage of limited inquiry has been completed without resolution and this issuance of **the notice of the right to file** closes the informal stage.

Your Equal Employment Opportunity (EEO) discrimination pre-complaint has not been resolved, and you are now entitled to file a formal complaint of discrimination under Title 29 Code of Federal Regulations (C.F.R.) Part 1614. If you believe that you have been discriminated against on the bases of race, color, religion, sex (including pregnancy, sexual orientation, and gender identity), national origin, age, mental/physical disability, GINA and/or retaliation for participation in protected EEO activities, or for opposing an unlawful employment practice under the anti-discrimination laws, **you have the right to file a formal complaint of discrimination within fifteen (15) calendar days after your receipt of this notice** pursuant to 29 C.F.R. § 1614.105(d).

If you wish to file a formal complaint, complete and sign the "Formal Individual Complaint Form for Employment Discrimination" and email the Formal Complaint to the following email address:

IHSDMEEOStaff@ihs.gov

If you are unable to email the Formal EEO Complaint to the email address listed above, please mail the Formal Complaint to the following address:

Angela Porter, EEO Director
Diversity Management and EEO Staff
5600 Fishers Lane, Mailstop 08E61
Rockville, Maryland 20857

A complaint shall be deemed timely if it is received or postmarked before the expiration of the 15 calendar day filing period, or in the absence of a legible postmark, if it is received by mail within five calendar days of the expiration of the filing period.

The complaint must contain only those issues either specifically discussed with the EEO Counselor or issues that are like or related to those discussed. It must also state whether you have filed a grievance under a negotiated grievance procedure or an appeal to the Merit Systems Protection Board (MSPB) on the same claims.

Should you file a formal complaint with the Agency, it is your responsibility to immediately notify this office in writing if you retain an attorney or any other type of representative. You and/or your representative will receive a written acknowledgment of your formal discrimination complaint from the appropriate Agency official.

Please refer to the "Notice of Rights and Responsibilities" for specific information in connection with the processing of your EEO complaint, to include your rights when alleging age discrimination, a violation of the Equal Pay Act, or raising a claim that is appealable to the MSPB. Should you have further questions regarding the EEO complaint process, please contact Sarah Nelson, Director, DMEEO Staff, at (301) 443-1108.

Kevin Turnage

11/04/2021

Date

Attachment (Formal Complaint Form – If you wish to file a formal complaint fill out the formal complaint form and submit)

Department of Health & Human Services

INDIAN HEALTH SERVICE
FORMAL INDIVIDUAL COMPLAINT FORM FOR EMPLOYMENT DISCRIMINATION
Agency File No.: HHS-IHS-0466-2021

FORMAL COMPLAINT OF DISCRIMINATION IN THE FEDERAL GOVERNMENT

PRIVACY Act Statement (6 U.S.C. Section 552A)

AUTHORITY: 42 U.S.C. 2000e-16(b) and (c); 29 U.S.C. Chapter 14; E.O. 12106.
Purpose: Used for processing of complaints of discrimination because of race, color, national origin, religion, sex, age, physical or mental disability or reprisal by the agency civilian employees, former employees or applicant for employment.

Routine Uses: Information will be used (a) as a data source for complaint information for production of summary descriptive statistics and analytical studies of complaints processing and resolution efforts and may also be used to respond to general requests for information under the Freedom of Information Act; (b) to respond to request from legitimate outside individuals or agencies (Congress, White House, Equal Employment Opportunity Commission) regarding the status of a complaint or appeal; or (c) to adjudicate a complaint or appeal.

Disclosure: Voluntary, however, failure to complete all appropriate portions of this form may lead to rejection of a complaint on basis of inadequate data on which to determine if a complaint is acceptable.

1. **Your name as complainant**:
Kevin Turnage

2. **Your home address**:
955 E Pinto CT
Gilbert AZ 85296

3a. **Your home phone No:** :
901-220-8664

3b. **Work Telephone**:
602-567-3207

4. **Name and address of the Agency where you currently work**:
Phoenix Indian Medical Center
4212 N 16th Street
Phoenix AZ 85016

5. **Do your have a representative?**
☐ a. YES (Complete Item 6) ☒ b. NO

6. **If yes, provide name, address and teephone number of your representative::**

Is your representative an attorney?
☐ YES ☐ NO

7a. **Name and address of the Agency (Duty Station) where the alleged discrimination occurred:**
Phoenix Indian Medical Center
4212 N 16th Street
Phoenix AZ 85016

7b. **Name and Title of Management Official responsible for the alleged discrimination:**
Eugena Crossland, Candace Lee, Alicia Priimak

8. **Date of most recent act of alleged discrimination**:
10/21/2021

9. **Are you a bargaining unit employee?**
☒ YES ☐ NO

10. **Are you a Federal Employee or job Applicant?**
☒ a. EMPLOYEE: Position Title, Job Series, Grade
☐ b. APPLICANT

11. **Reason you believe you were discriminated against** Check all that apply below:

	a. **Race** (If so, state your Race):		**e. Disability** (If so, state your Disability): ☐ Physical: ☐ Mental:
	b. Color (If so, state your skin Color):		f. **Age** (If so, state your Age and Date of Birth): 48 04/17/1973
	c. Religion: (If so, state your Religion):		g. **Sex:** (If so, state your Sex or LGBT status): MALE
	d. **National origin**: (If so, state your National Origin):		h. **Retaliation/reprisal** (If so, state date and nature of your participation in an EEO-protected activity or opposition to discriminatory practices.):

12 a. Did you discuss your issue with an EEO counselor?	12b. **If "yes," name of EEO Counselor:**	12c. **Date you first contacted an EEO Counselor**:	13. **Date received you notice of a final interview and right to file:**
☒ a. YES (Complete 12b) ☐ b. NO	Michelle Homer	09/30/2021	10/25/2021

14. **SELECT THE ISSUE(S)/CLAIM(S) BELOW THAT BEST DESCRIBE(S) YOUR COMPLAINT.** Briefly explain how you were discriminated against and identify the specific incidents or events and dates on which they occurred; *i.e.*, tell how you were treated differently from other employees or applicants because of your race, color, religion, sex, national origin, age, mental or physical disability, or retaliation. See Instructions.

Issue: Check all that apply		Specifically Explain:
Appointment/Hire		
Harassment (non-sexual)		
Promotion/Selection	✓	See attachement Bullet 1
Disciplinary Action		
Performance Appraisal/ Evaluation		
Training		
Assignment of Duties	✓	See Attachment Bullet 2
Duty Hours	✓	See Attachment Bullet 2

Medical Examination		
Reasonable Accommodation	✓	See attachement Bullet 4
Awards		
Reassignment Denied/Directed		
Reinstatement		
Retirement		
Time and Attendance		
Pay- Including Overtime		
Conversion to Full-time		
Examination/Test		
Terms and Conditions of Employment		

Additional narrative explaining the reasons you believe you were discriminated against. (Please describe the specific claim here if you did not identify one of the claims above.)

See Attachement

15. **Remedy/Resolution:** Please describe the terms, conditions, corrective actions, and remedial relief you are seeking in Resolving or adjudicating your complaint.

ALL Administration retrained in all EEOC laws.
All Laws and Contractual obligations met.
Stop disparaging treatment between Males and Females.
Back Pay plus interest from the date of when initially placed into the acting position until date of settlement.

16. **Have any of the incidents listed in item 14 been appealed to The Merit System Protection Board (MSPB) or filed under a Negotiated Grievance Procedure?**

☐ a. YES Explain. (Include date and case number.)

☑ b. NO

17. **SIGNATURE OF COMPLAINANT**:

18. **Date you signed your complaint:**

11/03/2021

19. **Date Complaint filed** (EEO Office use):

READ INSTRUCTIONS CAREFULLY

This form should be used only if you, as an applicant for Federal employment, or a current or former Federal employee, believe you have been discriminated against based on your race, color, religion, sex, national origin, age, disability, or retaliation by a Federal agency, and have presented the matter for informal resolution to an Equal Employment Opportunity (EEO) Counselor, and you have either received your Notice of Final Interview/Right to File Formal or more than thirty (30) calendar days have elapsed from your date of initial contact, and the matter remains unresolved.

A formal complaint of discrimination must be filed within fifteen (15) calendar days of your, or your attorney's, if applicable, receipt of the Notice of Final Interview/Right to File Formal. You may submit this form by hand-delivery/mail to [OPDIV EEO Office Address] or fax [OPDIV EEO Office Fax #]. It must be postmarked or received on or before the fifteenth (15th) calendar day from your/your attorney's receipt of the Notice of Final Interview/Right to File Formal. It is your responsibility to keep the [OPDIV EEO Office] informed of your current address. Should your address or contact information change, you must notify the HQ Office immediately.

In completing this form, it is very important that:

1. You provide the date(s) of the alleged discriminatory action(s). Dates are used to determine timeliness, and in accordance with the Equal Employment Opportunity Commission's (EEOC) regulations, an individual must initiate contact with an EEO Counselor within forty-five (45) calendar days of the date the incident(s) occurred or, if a personnel action, within forty-five (45) calendar days of its effective date.
2. You state clearly the action(s) which you allege a Federal agency took or failed to take that you believe to be discriminatory. What action(s) was taken or not taken that led you to contact an EEO Counselor?
3. You focus on the claims(s) raised with the EEO Counselor or like or related claim(s). Your formal complaint should include only those claim(s) on which you were counseled and wish to pursue through the formal complaint process. This may be all or only some of the claim(s) raised during the pre-complaint process. You decide what claim(s) you want to continue to pursue. Claim(s) raised in the formal filing that were not raised with the EEO Counselor or are not like or related to the claim(s) raised can be dismissed or referred for EEO counseling.

Example: On September 20, 2005, my immediate supervisor, John Doe, advised me that I was not selected for a GS-14, Attorney position under Vacancy Announcement Number H-05-89. I believe the non-selection was based on my race (Asian) because the selectee, Tom Jones, is White and has less litigation experience than I do. Also, on October 3, 2005, I received a Reprimand from Mr. Doe. I believe the Reprimand was issued in retaliation for initiating this EEO complaint on September 22, 2005. Other employees such as Mary Smith arrive late for work but are not disciplined.

Should you need additional space in completing this form, attachments are permitted. However, please note that it is not necessary or encouraged for you to submit documentary evidence relating to the merits of your complaint with your formal filing. Such information should be provided to an EEO investigator if your complaint is accepted for investigation. If the [OPDIV EEO Office] needs additional information or clarification in accepting or dismissing your claim(s), you will be contacted.

Subsequent to filing this formal complaint, you will receive a letter from the [OPDIV EEO Office] acknowledging receipt of your complaint and providing you with specific information about your rights and responsibilities. Should you have questions in the interim, please contact [Name, Title] at [phone number].

If any or all of your claims are accepted for investigation, you will be contacted by an EEO investigator. You should cooperate with and present to the investigator all evidence and documentation you have in support of your claim(s) as well as the names of potential witnesses. Should your complaint be dismissed and not accepted for investigation, you will be advised of appropriate appeal rights.

Attachment A

1. This all began when 7/22/2021 when a meeting was scheduled for 1300 by Linda Dietrich in the CEO conference room. When the meeting began it consisted of myself, Linda Dietrich, Tamara Miller and Candace Lee. At the meeting they asked me if I would be acting SCN for Primary Care and how I was who Mrs. Lee wanted for the position. Then they each discussed how they thought I would be a great fit for the position. I asked for time to consider and if I could give them my answer on Monday 7/26/2021 after discussing with my wife. I began in PCMC as Acting on 08/02/2021. I inquired about the higher GS position and the fact that it was a higher grade and if I would be compensated. Mrs. Lee later told me that I would "you will have to apply for the detail, because you are not Indian" and I stated I would not apply for a detail I was asked to do to help the agency. I was informed on 08/26/2021 that I would be returning to education on 08/30/2021 because the other educators were being detailed. When the educators were not detailed immediately I texted Mrs. Lee and inquired for the reason my detail ended and she stated it was because I would not apply for a temporary promotion, I explained at that time I never said that and that she had told me I had to apply for the detail which, is two separate things. I also asked her then why the process was different for Alicia Priimak who had been detailed to Acting Chief Nursing Officer from ICU and as a White female non IP employee the process was different for her and me. She replied "I cannot speak to that. I noticed that too". I had a meeting with acting COO Eugena (Shay) Crossland on 09/09/2021 at 12:30 in her office. I inquired why the process was different and she stated that it was not and that the Temporary Promotion would be posted for the Acting ACNO position that Alicia Priimak was detailed to (they officially detailed her on 09/13/2021 even though the CNO Lynne Brownell announced it to all staff on 09/02/2021) however I waited for 31 days from the date of the official detail of 09/13/2021 to see if the 31 day time frame in the collective bargaining agreement (CBA) with LIUNA was adhered to before filing my complaint. To date 11/04/2021 the temporary promotion still has not been posted in accordance with the CBA. Showing that the agency discriminated against me as a white male over the age of 40 when they continue to have and follow different processes for white females under 40 non-ip than for males even though it is clearly defined in the CBA, 5 CFR Part 500 and in the Indian Health Manual. The process is legally different for IP vs non-IP staff. Note there is zero (0) males in Nursing Leadership in PIMC

2. 10/21/2021 received email from Mrs. Priimak stating I had to return to full-time work from telework on 10/25/2021 and "Any further tele work after this date will not be approved". I had been teleworking since March 2020 and 16 months of that time was teleworking 5 days a week. It is only after I file EEO and executives are questioned for informal EEOC complaint that the telework was stopped.

3. 10/21/2021 submitted request for Reasonable Accommodation to Human Resources.

4. 10/26/2021 Alicia Priimak had Patricia Northcutt leave the nurse education office so she could talk to me. She stated I want to discuss your request for Reasonable Accommodation. During the conversation she stated "You cannot have your Reasonable Accommodation and still be considered for the promotion to the SCN for Primary Care."